

United States Code Annotated
Title 42. The Public Health and Welfare
Chapter 45. Fair Housing (Refs & Annos)
Subchapter I. Generally (Refs & Annos)

42 U.S.C.A. § 3613

§ 3613. Enforcement by private persons

Currentness

(a) Civil action

(1)(A) An aggrieved person may commence a civil action in an appropriate United States district court or State court not later than 2 years after the occurrence or the termination of an alleged discriminatory housing practice, or the breach of a conciliation agreement entered into under this subchapter, whichever occurs last, to obtain appropriate relief with respect to such discriminatory housing practice or breach.

(B) The computation of such 2-year period shall not include any time during which an administrative proceeding under this subchapter was pending with respect to a complaint or charge under this subchapter based upon such discriminatory housing practice. This subparagraph does not apply to actions arising from a breach of a conciliation agreement.

(2) An aggrieved person may commence a civil action under this subsection whether or not a complaint has been filed under [section 3610\(a\)](#) of this title and without regard to the status of any such complaint, but if the Secretary or a State or local agency has obtained a conciliation agreement with the consent of an aggrieved person, no action may be filed under this subsection by such aggrieved person with respect to the alleged discriminatory housing practice which forms the basis for such complaint except for the purpose of enforcing the terms of such an agreement.

(3) An aggrieved person may not commence a civil action under this subsection with respect to an alleged discriminatory housing practice which forms the basis of a charge issued by the Secretary if an administrative law judge has commenced a hearing on the record under this subchapter with respect to such charge.

(b) Appointment of attorney by court

Upon application by a person alleging a discriminatory housing practice or a person against whom such a practice is alleged, the court may--

(1) appoint an attorney for such person; or

(2) authorize the commencement or continuation of a civil action under subsection (a) without the payment of fees, costs, or security, if in the opinion of the court such person is financially unable to bear the costs of such action.

(c) Relief which may be granted

(1) In a civil action under subsection (a), if the court finds that a discriminatory housing practice has occurred or is about to occur, the court may award to the plaintiff actual and punitive damages, and subject to subsection (d), may grant as relief, as the court deems appropriate, any permanent or temporary injunction, temporary restraining order, or other order (including an order enjoining the defendant from engaging in such practice or ordering such affirmative action as may be appropriate).

(2) In a civil action under subsection (a), the court, in its discretion, may allow the prevailing party, other than the United States, a reasonable attorney's fee and costs. The United States shall be liable for such fees and costs to the same extent as a private person.

(d) Effect on certain sales, encumbrances, and rentals

Relief granted under this section shall not affect any contract, sale, encumbrance, or lease consummated before the granting of such relief and involving a bona fide purchaser, encumbrancer, or tenant, without actual notice of the filing of a complaint with the Secretary or civil action under this subchapter.

(e) Intervention by Attorney General

Upon timely application, the Attorney General may intervene in such civil action, if the Attorney General certifies that the case is of general public importance. Upon such intervention the Attorney General may obtain such relief as would be available to the Attorney General under [section 3614\(e\)](#) of this title in a civil action to which such section applies.

CREDIT(S)

([Pub.L. 90-284](#), Title VIII, § 813, as added [Pub.L. 100-430](#), § 8(2), Sept. 13, 1988, 102 Stat. 1633.)

Notes of Decisions (763)

O'CONNOR'S CROSS REFERENCES

See also Prop. Code §§301.151-301.156.

O'CONNOR'S ANNOTATIONS

Bank of Am. Corp. v. City of Miami, 581 U.S. 189, 197 (2017). See annotation under [42 U.S.C. §3602](#).

Texas Dept. of Hous. & Cmty. Affairs v. Inclusive Cmty. Project, Inc., 576 U.S. 519, 544-45 (2015). “[E]ven when courts do find liability under a disparate-impact theory [brought under §3613], their remedial orders must be consistent with the Constitution. Remedial orders in disparate-impact cases should concentrate on the elimination of the offending practice that ‘arbitrar[ily] ... operate[s] invidiously to discriminate on the basis of rac[e].’ If additional measures are adopted, courts should strive to design them to eliminate racial disparities through race-neutral means. Remedial orders that impose racial targets or quotas might raise more difficult constitutional questions.”

Havens Rlty. Corp. v. Coleman, 455 U.S. 363, 372 (1982). “[T]he sole requirement for standing to sue under [FHA] §812 [now 42 U.S.C. §3613] is the [[U.S. Const.](#)] Art. 3 minima of injury in fact: that the plaintiff allege that as a result of the defendant's actions he has suffered ‘a distinct and palpable injury[]’ At 373-74: We [now] address the question of ‘tester’ standing. [¶] ‘[T]esters’ are individuals who, without an intent to rent or purchase a home or apartment, pose as renters or purchasers for the purpose of collecting evidence of unlawful steering practices. ... Congress has ... conferred on all ‘persons’ a legal right to truthful information about available housing. [¶] A tester who has been the object of a misrepresentation made unlawful under [FHA] §804(d) [now [42 U.S.C. §3604\(d\)](#)] has suffered injury in precisely the form the statute was intended to guard against, and therefore has standing to [sue]. That the tester may have approached the real estate

agent fully expecting that he would receive false information, and without any intention of buying or renting a home, does not negate the simple fact of injury within the meaning of §804(d).” See also *Gladstone, Realtors v. Village of Bellwood*, 441 U.S. 91, 109 (1979).

Saint-Jean v. Emigrant Mortg. Co., 129 F.4th 124, 140 (2d Cir.2025). "Claims under the FHA ... accrue when a 'plaintiff knows or has reason to know of the injury that is the basis of the action.' At 141: [T]he relevant injury is discrimination and not the loan itself. The 'discriminatory housing practice' is not the making of an onerous loan but it is, instead, [D's] targeting of Black and Latino borrowers and pattern of writing ... loans to a disproportionate number of Black borrowers knowing that the loans were likely to fail. While [Ps] were no doubt harmed by the loans themselves, their claims against [D] sound in discrimination, and not, for instance, fraud related to the loans. [¶] [E]ven if [Ps'] claims accrued at closing or upon default when they first learned of the onerous default interest rate, the district court did not abuse its discretion in exercising its equitable power to toll the statute of limitations until the date when [Ps] knew or had reason to know of their injury--that they were victims of [D's] sophisticated and systemic pattern of discriminatory lending."

Gilead Cmty. Servs. v. Town of Cromwell, 112 F.4th 93, 103 (2d Cir.2024). “[D] argue[d] that when it expressly allowed for punitive damages in FHA suits, Congress silently meant to shield municipalities from their reach. It did not. [¶] [T]he FHA’s text easily and unequivocally rebuts the common-law presumption [against the availability of punitive damages from municipalities]. To be sure, the statute does not specifically say that punitive damages are available *against municipalities*. But Congress does not need to speak with such granular detail on the issue. The language of the FHA is broad but clear: Private plaintiffs suing under the FHA may obtain ‘actual and punitive damages’ with no textually specified exceptions. ‘As a general matter, courts should be loath to announce equitable exceptions to legislative requirements or prohibitions that are unqualified by the statutory text.’ And in fact, when Congress has desired to carve local governments out from generally applicable remedies under a statute, it has said so clearly.”

Green v. Mercy Hous., Inc., 991 F.3d 1056, 1057-58 (9th Cir.2021). “*In Christiansburg [Garment Co. v. EEOC]*, 434 U.S. 412 (1978), the Supreme Court held that, under the fee-shifting provision of Title VII ..., attorney’s fees should be awarded to a prevailing defendant only if the plaintiff’s claim was ‘frivolous, unreasonable, or without foundation.’ [¶] We have since held that *Christiansburg* applies to the award of both fees and costs to a prevailing defendant under the [Americans with Disabilities Act (ADA)]. [¶] We now apply this same logic to the FHA. The Act’s fee-shifting provision states that ‘the court, in its discretion, may allow the prevailing party ... a reasonable attorney’s fee and costs.’ ‘[F]ee-shifting statutes’ similar language is a strong indication that they are to be interpreted alike.’ And the text of the FHA provision is nearly identical to that of the fee-shifting provision of the ADA. ... Because the FHA, like the ADA, treats costs as parallel

to, rather than a subset of, attorney's fees, we hold that the *Christiansburg* standard applies to the award of both attorney's fees and costs under the FHA."

Quigley v. Winter, 598 F.3d 938, 952-53 (8th Cir.2010). "The FHA provides for the recovery of punitive damages by victims of discriminatory housing practices. We apply the same standard for punitive damages in FHA cases as we do in employment discrimination and 42 U.S.C §1983 civil rights cases. Punitive damages are appropriate in a federal civil rights action when the defendant's conduct is shown to be motivated by evil motive or intent, or when it involves reckless or callous indifference to the federally protected rights of others. [T]he terms 'malice' and 'reckless indifference' ultimately focus on the actor's state of mind. They pertain to the defendant's knowledge that he may be acting in violation of federal law, not his awareness that he is engaging in discrimination. Thus, it is sufficient that a defendant discriminate in the face of a perceived risk that his actions will violate federal law to be liable in punitive damages. [¶] To assess the reasonableness or excessiveness of a punitive damages award, we consider: (1) the degree of reprehensibility of the defendant's conduct, (2) the ratio between punitive damages and actual harm (compensatory damages), and (3) the civil or criminal penalties that could be imposed for comparable misconduct. *At 954*: In assessing the degree of reprehensibility, we must consider whether the harm caused was physical as opposed to economic; the tortious conduct evinced an indifference to or a reckless disregard of the health or safety of others; the target of the conduct had financial vulnerability; the conduct involved repeated actions or was an isolated incident; and the harm was the result of intentional malice, trickery, or deceit, or mere accident. [¶] Punitive damages must bear a reasonable relationship to compensatory damages. What constitutes a reasonable relationship varies from case to case. The Supreme Court has consistently rejected the notion that the constitutional line is marked by a simple mathematical formula, even one that compares actual and potential damages to the punitive award. *At 955*: [However,] few awards exceeding a single-digit ratio between punitive and compensatory damages, to a significant degree, will satisfy due process. Single-digit multipliers are more likely to comport with due process, while still achieving the State's goals of deterrence and retribution. ... While these ratios are not binding, they are instructive." (Internal quotes omitted.) See also *Gilead Cnty. Servs. v. Town of Cromwell*, 112 F.4th 93, 104-05 (2d Cir.2024); *U.S. v. Rupp*, 68 F.4th 1075, 1080-81 (8th Cir.2023).

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Current through P.L. 119-36. Some statute sections may be more current, see credits for details.